

Kudrat Khan v. Uttar Pradesh Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 14 February 2020 · Writ-C No. 5563 of 2020 · **Writ disposed; petitioner relegated to Clause 6.5, to be considered in six weeks.**

HEADNOTE

A writ petition disputing an electricity bill was disposed of on the licensee's preliminary objection of alternative remedy. The consumer was given liberty to apply under Clause 6.5 of the U.P. Electricity Supply Code, 2005 against the disputed assessment within two weeks; such representation is to be considered in accordance with law and disposed of within six weeks.

FACTUAL SUMMARY

Kudrat Khan approached the Allahabad High Court by a writ petition disputing an electricity bill issued by Uttar Pradesh Power Corporation Ltd. Counsel for the petitioner was heard. Counsel for the electricity department raised a preliminary objection that the petitioner had an alternative remedy of representation before the appropriate authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005, and a further remedy under the UPERC (Consumer Grievance Redressal Forum and Electricity Ombudsman) Regulations, 2007. The Court did not examine the correctness of the bill.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — alternate remedy

HOLDING

A writ petition disputing an electricity bill is disposed of with liberty to apply under Clause 6.5 of the U.P. Electricity Supply Code, 2005; if the consumer applies against the disputed assessment within two weeks with a certified copy of the order, the representation shall be considered in accordance with law and disposed of within six weeks. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy The writ was not decided on the bill; the consumer was relegated to Clause 6.5 as the appropriate remedy for the disputed assessment. ¶ 1

6.5-representation-as-appropriate-remedy On the licensee's preliminary objection, representation under Clause 6.5 was treated as the proper forum, with a two-week filing window and six-week disposal direction. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The disputed bill was left to the Clause 6.5 statutory representation rather than writ adjudication. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED ELECTRICITY BILL

The Court did not examine the assessment on merits and relegated the petitioner to Clause 6.5. ¶ 1